

Non-Solvency II Firms ? Senior Managers Regime ? Transitional Provisions

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Application and Definitions

1.1

Unless otherwise stated, this Part applies to a _firm_ that, on the _effective date_, has a _Part 4A permission_ for _effecting contracts of insurance_ or _carrying out contracts of insurance_ and which will with effect from 1 January 2016 be:

1. (1) a _small non-directive insurer_; or
2. (2) a _run-off firm_.

1.2

In this Part, the following definitions shall apply:

continued approval

means approval to perform a _PRA senior management function_ under section 59 of _FSMA_, granted pursuant to a _conversion notification_.

effective date

means 16 December 2015.

FCA activities

means a function which would, except for SUP TP 8.2.3R of the _FCA Handbook_, be an _FCA governing function_.

run-off firm

has the meaning given in Non-Solvency II Firms ? Transitional Measures.

scope of responsibilities form

has the meaning given in Non-Solvency II Firms - Senior Insurance Managers Regime - Applications and Notifications as at 7 March 2016.

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General

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Grandfathering Notification Requirements

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Procedure for Making Grandfathering Notifications

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Withdrawing or Updating a Grandfathering Notification

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Table of Equivalent Functions for Conversion

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6.4

1. (1) If, in relation to a _firm_ , a _PRA senior management function holder_ with _continued approval_ also performs _FCA activities_ on and from the _commencement date_ , performance of the _PRA senior management function_ will include the performance of those _FCA activities_ provided that the _firm_ has included details of the _FCA activities_ in a _scope of responsibilities form_ for that _PRA senior management function holder_ which is provided to the _PRA_ by 7 March 2017.

2. (2) If, in relation to a _firm_ , a _PRA senior management function holder_ with _continued approval_ has been performing _FCA activities_ in the circumstances set out in (1), and that _person_ :

1. (a) ceases to perform the _PRA senior management function_ ;

2. (b) within three _months_ of ceasing performance, is approved to perform a new _PRA senior management function_ at the _firm_ ; and

3. (c) continues to perform the _FCA activities_ ,

3. performance of the new _PRA senior management function_ will include the performance of those _FCA activities_ , provided:

1. (d) the _PRA's_ approval to perform that _PRA senior management function_ continues in force;

2. (e) the _firm_ makes the notification required by SUP10C.9.8R(4) of the _FCA Handbook_ ; and

3. (f) that _person_ performs and is continuing to perform the _FCA activities_.

6.5

If a _PRA senior management function holder_ to whom 6.4 applies ceases to perform a _PRA senior management function_ but continues to perform the _FCA activities_ , 6.4(1) will continue to apply in respect of the performance of the _FCA activities_ until the earlier of:

1. (1) approval by the _FCA_ in respect of the performance by a _person_ of those _FCA activities_ as an _FCA governing function_ in relation to the _firm_ ; or

2. (2) three _months_ from the time that the _person_ ceased to perform that _PRA senior management function_.

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Forms

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